



DECISION

Complaint No. : POS/6848/2025/Advisor-H

Name and address of the complainant : Mr. Shahid-Ur-Rehman, Proprietor, M/s W.S Enterprises, Plot No. 322, Old Golimar, site town, Manghopir road, Karachi.

Name of the Agency Complained against : Works and Services Department.

Name & Designation of Investigating Officer : Rehana Ghulam Ali Memon, Advisor (H)

Vetted by :

Subject : **COMPLAINT AGAINST ALLEGED RETENDERING OF THE PROJECT "CIRCUIT HOUSE GOR-I BATH ISLAND, KYC", ALREADY AWARDED TO THE COMPLAINANT.**

COMPLAINT

Mr. Shahid-Ur-Rehman filed a complaint on 24.09.2025 stating that the project Circuit House-I, GOR-I, Bath Island was awarded to his firm through a valid contract, with a work order issued on 29.03.2024. Approximately 15% of the work was completed. He contended that non-release of funds by department hindered progress. He further alleged that the department is considering awarding the same project under the ADP scheme without issuing any formal termination notice, in violation of contractual terms. The complainant apprehends financial loss and reputational damage and has sought intervention of this institution.

PROCEEDINGS

2. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date), subject to submission of copy of CNIC and Affidavit on Form 'A'. The complainant submitted the required documents.

3. The matter was taken up with the Agency vide letter dated 13.10.2025. The concerned Executive Engineer (Building), Works and Services Department, through a letter No. TC/G-55/PBD-1/2025-26/640 dated 04.11.2025 informed that the aforementioned project vide work order dated 29.03.2024 was handed over to the complainant's firm for the duration of 06 months i.e. up to 28.09.2024 for Rs.61.7 Million against which contractor paid security deposit of Rs.1.16 M. Despite repeated instructions from the field formation, the record confirms that the contractor did not execute any physical work at the site, therefore no funds were released and no liability exists against the said work. Hence the contentions raised by the contractor are factually incorrect, misconceived, and without merit.

4. The Chief Engineer further informed that they prepared PC-I as per the demand of Administrative Department for the scheme namely Renovation / Rehabilitation of Circuit House-I@ GOR-I Bath Island Karachi at ADP No.2836 of 2025-26 and approved by the competent forum amounting to Rs.150.00 (M). Subsequently, his office called the tender for Civil and Electric Works of the aforementioned scheme as per approved PC-I.

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5. A hearing was fixed on 13.11.2025 where the position mentioned at para-3&4 was confirmed by the Executive Engineer. The complainant said that he has not received any notice of not doing any work on site from the Executive Engineer and suddenly a fresh tender was published undermining his legitimate rights and requested to direct the department to honour the agreement signed with him. The department was asked that if any letter was written to complainant about not starting the work or on slow progress, it shall be provided and also to submit the cancellation order of tender awarded to the complainant. The department was supposed to submit the reply on 24.11.2025 but failed to do so. Hence a hearing was again called on 23.01.2026 where the concerned Executive Engineer and the complainant were called. The representative of the department informed that complainant is withdrawing his complaint against the department as he has been given some other work as per rules to the satisfaction of the complainant. The complainant also submitted his withdrawal application and signed it before the Investigation Officer.

FINDINGS

6. The complainant's grievance has been addressed by the Works and Services Department, therefore, he has withdrawn his complaint.

DECISION

7. In view of the above and in exercise of powers vested in me under Section-11 of Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date), I hereby dispose of the complaint as withdrawn.

Given under my hand and seal of office.



Sd /-
Muhammad Sohail Rajput
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 30th January, 2026